PART K
DEFINITIONS



Definitions

Note: Definitions from the Blue Mountains Local Environmental Plan 2015 (LEP 2015) are identified by 'LEP 2015' at the end of each definition.

1% Annual Exceedance Probability (AEP) flood means a flood with a 1% (1:100) probability of occurring in any given year, also known as the 100 year Average Recurrence Interval (ARI).

5% AEP flood means a flood with a 5% (1:20) probability of occurring in any given year, also known as the 20 year ARI.

Aboriginal object means physical evidence of the use of an area by Aboriginal people. They can also be referred to as 'Aboriginal sites', 'relics' or 'cultural material'.

Aboriginal place means a place that was or is of special significance with respect to Aboriginal culture, as defined in the NSW National Parks and Wildlife Act 1974 (NPW Act).

Adaptation means modification of a heritage item to suit the proposed, compatible use.

Aesthetic significance means an item having this value is significant because it has visual or sensory appeal, landmark qualities and/or creative or technical excellence

Alter *(as it applies to a heritage item or to a building or work within a heritage conservation area)* means to make structural changes to the outside of the heritage item, building or work, or to make non-structural changes to the detail, fabric, finish or appearance of the outside of the heritage item, building or work, but not changes that involve the maintenance of the existing detail, fabric, finish and appearance of the outside of the heritage item, building or work.

Archaeological site means place that contained evidence of past human activity. Below-ground archaeological sites include building foundations, occupation deposits, features and artefacts. Above-ground archaeological sites include buildings, works, industrial structures and relics that are intact or ruined.

Articulation zone means an area of a lot forward of the building line within which prescribed building elements are permitted to be located, being an area measured from (a) one side boundary of the lot to the opposite side boundary of the lot, or (b) if the lot is a corner lot-the secondary road boundary of the lot to the boundary opposite the secondary road boundary.

Assisted natural regeneration (the main practical approach to ecological restoration) is a staged process which aims to stimulate or "trigger" the growth of native plant propagules (such as seed, tubers or rhizomes etc.) already present on site or having the ability to migrate onto the site. This is used in preference to the use of revegetation. It generally employs low impact techniques to treat existing weed incursions and repair damaged land surfaces (including creek banks and swamps).

Building includes part of a building and also includes any structure or part of a structure..

Building identification sign means a sign that identifies or names a building and that may include the name of a building, the street name and number of a building, and a logo or other symbol but does not include general advertising of products, goods or services. (LEP 2015)

Bunding/bunded means an impervious embankment of earth, or a wall of brick, stone, concrete or other suitable material, which may form part or all of the perimeter of an area that provides a barrier to retain liquid.

Bush regeneration is defined by the Australian Association of Bush Regenerators (AABR) as meaning: the practice of restoring bushland by focusing on reinstating and reinforcing the systems' ongoing natural regeneration processes"

Bush fire protection measures (BPMs) means a range of measures (controls) available to minimise the risk arising from a bush fire. BPMs include Asset Protection Zones, construction standards, suitable access arrangements, water and utility services, emergency management arrangements and landscaping. (Ref: NSW Rural Fire Service, *Planning for Bushfire Protection 2019*).

Compatible use means use for a heritage item which involves no change to its culturally significant fabric, changes which are substantially reversible or changes which make a minimal impact.

Conservation *(as it applies to vegetation management)* means all the processes and actions of looking after a place so as to retain its natural significance and always includes protection, maintenance and monitoring. Conservation may, according to circumstance, also include regeneration, restoration, enhancement, reinstatement, preservation or modification, or a combination of more than one of these. Conservation includes conserving natural processes of change (as opposed to artificially accelerated changes).

Conservation *(as it applies to heritage)* means all the processes of looking after an item so as to retain its cultural significance. It includes maintenance and may, according to circumstances, include preservation, restoration, reconstruction and adaptation and will be commonly a combination of most on one of these.

Conservation management plan means a document prepared in accordance with the requirements of the NSW Heritage Branch that establishes the significance of a heritage item, place or heritage conservation area, and proposes policies and management mechanisms to retain that significance. It can include guidelines for additional development or maintenance of the place.

Contributory building means a building and its setting, which contributes to the heritage significance of a heritage conservation area but which is not listed as a heritage item.

Contributory item means a building, work, archaeological site, tree or place and its setting, which contributes to the heritage significance of the heritage conservation area. The contributory properties may have historic, aesthetic, social or scientific values but will most typically have historic and/or aesthetic significance including streetscape value.

Critical facilities means hospitals, police, fire, ambulance, SES stations, major transport facilities, major sewage or water supply or electricity or telecommunication plants, schools, nursing homes and retirement villages

Cultural landscape means those areas of the landscape which have been significantly modified by human activity and may contain various heritage items, contributory items or heritage conservation areas and act as the heritage curtilage to those items or areas. They include rural lands such as farms, villages and mining sites, as well as country towns.

Cultural significance means a term frequently used to encompass all aspects of significance, particularly in guideline documents such as the Burra charter. Also one of the categories of significance listed in the *Heritage Act 1977.*

Curtilage in relation to a heritage item or conservation area, means the area of land (including land covered by water) surrounding a heritage item, a heritage conservation area, or building, work or place within a heritage conservation area, that contributes to its heritage significance. (LEP 2015)

Damage refers to acute and obvious changes within an ecosystem.

Dead *(as it applies to trees or vegetation for the purpose of the DCP)* means a tree with no living vascular tissue. This includes the following symptoms such as permanent leaf loss in both deciduous and evergreen plants; permanent wilting (the loss of turgidity which is marked by the drying out of stems, leaves and roots); shedding of the epidermis (bark dries out and peels off to the beginning of the sapwood.

Deep soil zones means landscaped areas which are free of artificial structures and with a relatively unmodified soil profile. They are allocated to permit the establishment and growth of tall trees and to promote rainwater infiltration, and are to have minimum dimensions of 3m x 3m. These areas should be located to the rear of the development site, unless an improved outcome may be achieved by locating the area contiguous with deep soil zones on adjoining properties in an alternative location. Established trees which are to be retained will generally be presumed to be supported by a deep soil zone, and such areas may be included within deep soil zone area calculations.

Degradation means any subtle or gradual decline in the quality of natural resources or natural integrity of a place or the viability of an ecosystem, caused directly or indirectly by human activities.

Degraded bushland means bushland which is either overcleared, or contains disturbed or contaminated soils, or which has lost all or some of its component stratum or species, or which is significantly burdened by introduced 'weed' species. Degraded bushland does not represent optimal habitat for native fauna species, and it may represent a point source of weed propagules for other areas of the catchment.

Demolition means the damaging, defacing, destroying or dismantling of a heritage item or a component of a heritage conservation area, in whole or in part.

Ecological connectivity means physical or ecological events that permit the flow of material, organisms and ecological processes between habitat areas that are intermittently or permanently isolated in space or time.

Ecologically Sustainable Development (ESD) requires the effective integration of economic and environmental considerations in decision-making processes. Ecologically sustainable development can be achieved through the implementation of the following principles and programs:

(a) the precautionary principle—namely, that if there are threats of serious or irreversible environmental damage, lack of full scientific certainty should not be used as a reason for postponing measures to prevent environmental degradation.

In the application of the precautionary principle, public and private decisions should be guided by:

i. careful evaluation to avoid, wherever practicable, serious or irreversible damage to the environment, and

ii. an assessment of the risk-weighted consequences of various options,

(b) inter-generational equity—namely, that the present generation should ensure that the health, diversity and productivity of the environment are maintained or enhanced for the benefit of future generations,

(c) conservation of biological diversity and ecological integrity—namely, that conservation of biological diversity and ecological integrity should be a fundamental consideration,

(d) improved valuation, pricing and incentive mechanisms—namely, that environmental factors should be included in the valuation of assets and services, such as:

i. polluter pays—that is, those who generate pollution and waste should bear the cost of containment, avoidance or abatement,

ii. the users of goods and services should pay prices based on the full life cycle of costs of providing goods and services, including the use of natural resources and assets and the ultimate disposal of any waste,

iii. environmental goals, having been established, should be pursued in the most cost effective way, by establishing incentive structures, including market mechanisms, that enable those best placed to maximise benefits or minimise costs to develop their own solutions and responses to environmental problems.

Ecological processes means all those processes that occur between organisms, and within and between communities, including interactions with the non-living environment, that result in existing ecosystems and bring about changes in ecosystems over time.

Ecological Restoration is the process of assisting the recovery of an ecosystem that has been degraded, damaged or destroyed, The aim is to return existing habitats to a known past state or to an approximation of the natural condition.

Endangered Ecological Communities (EEC) are groups of plants and animals that occur together in a particular area, and which are listed under the Biodiversity Conservation Act 2016 or the Environmental Protection and Biodiversity Conservation Act 1999 (EPBC Act) as critically endangered, endangered or vulnerable, depending on their risk of extinction.

Endemic means local and restricted to a particular area, although the level of endemism can be very broad (e.g. endemic to Australia) or very narrow (e.g. endemic to Katoomba and Leura). It may also be used to indicate locally indigenous vegetation that is 'remnant' on a site.

Enhancement means the introduction of additional organisms, genotypes, species or elements of habitat or geodiversity to those that naturally exist in a place Enhancement planting must be restricted to endemic species, and where possible, to those of 'local' genetic provenance.

Environmentally sensitive areas means environmentally sensitive land, protected areas, springs or areas with a shallow groundwater table, environmentally sensitive or significant natural areas as identified in Part C1 Biodiversity and Natural Resources Section of this DCP.

Environmentally sensitive land includes the following land:

(a) land in zone C2 Environmental Conservation,

(b) land identified as "Protected area - Slope constraint area" on the LEP 2015 Natural Resources - Land Map that has a slope exceeding 20%, excluding any land that has an area of less than 100 square metres and that is not within 20 metres of other land that has a slope exceeding 20%, but only if that land is not otherwise environmentally sensitive land,

(c) land identified as "Protected Area - Ecological Buffer Area" on the LEP 2015 Natural Resources - Biodiversity Map,

(d) land that is a watercourse and land that is within 40 metres of the top of the bank of a watercourse,

(e) land on which any significant vegetation community is located and land that is within 60 metres of any such community,

(f) land on which any rare species of flora is located and land that is within 20 metres of any such species,

(g) land comprising any significant geological feature, such as rock outcrops and escarpments,

but does not include land determined under LEP 2015 clause 6.2 (Assessment of certain environmentally sensitive land) not to be environmentally sensitive land for the purposes of LEP 2015. (LEP 2015)

EV distribution board is a distribution board dedicated to EV charging that is capable of supplying not less than 50% of EV connections at full power at any one time during off-peak periods and includes an EV Load Management System.

EV ready connection is the provision of a dedicated spare 32A circuit provided in an EV distribution board to enable easy future installation of cabling from an EV charger to the EV distribution board and a circuit breaker to feed the circuit.

Exotic plants means any plant not originating in Australia.

Fabric means all the physical material of an item, including surroundings and contents which contribute to its heritage significance. In the case of a building, fabric would include materials such as brick, stone, timber, mortar, glazing, iron, steel, terracotta, plaster.

Façade means the elevation of a building facing the street. In the past the practice of retaining only the facade of buildings was regarded as a gesture in recognition of its heritage value. The Heritage Council (and Blue Mountains City Council) no longer condones this practice.

Flood planning level means the level of a 1:100 ARI (average recurrent interval) flood event plus 0.5 metre freeboard. (LEP 2015)

Form means the way that the parts of the building enclose the spaces – for example, the shape of the building and roof. The form is also influenced by semi-enclosed spaces around the building, such as verandahs, courtyards and carports. Elements such as chimneys, parapets and towers are part of the building's form.

Fragmentation or habitat subdivision describes the emergence of discontinuities in an organism's preferred environment, and isolation of preferred habitat areas within a hostile environmental matrix or dissimilar and unsuitable vegetated matrix .

Freeboard means a factor of safety typically used in relation to floor levels, to ensure that the required standard of protection is achieved.

Habitable room is a room used for normal domestic activities, other than a bathroom, laundry, toilet, pantry, walk in wardrobe, hallway, lobby, clothes drying room or other space of a specialised nature that is not occupied frequently or for extended periods.

Height *(as it applies to trees)* means the distance measured vertically between the horizontal plane of the lowest point of the base of the tree/s which is immediately above ground level and the horizontal plane of the uppermost point of the tree/s.

Heritage assessment criteria mean the principles by which the values for heritage significance are described and tested. The New South Wales Heritage Council has adopted criteria for the assessment of heritage significance based on six core values: historic value, historic association value, aesthetic value, research value, social value, representative value and rarity value. See the publication Assessing Heritage Significance published by the New South Wales Heritage Council for a detailed description of these values and how they are interpreted.

Heritage conservation area means an area of land of heritage significance:
(a) shown on the LEP 2015 Heritage map as a heritage conservation area, and
(b) the location and nature of which is described in Schedule 5 of LEP 2015,

and includes any heritage items situated on or within that area (LEP 2015)

Heritage item means a building, work, place, relic, tree, object or archaeological site the location and nature of which is described in Schedule 5 of LEP 2015. (LEP 2015)

Heritage significance means historical, scientific, cultural, social, archaeological, architectural, natural or aesthetic value. (LEP 2015)

Heritage value means the same as heritage significance.

Horticulture means the cultivation of fruits, vegetables, mushrooms, nuts, cut flowers and foliage and nursery products for commercial purposes, but does not include a plant nursery, turf farming or viticulture. (LEP 2015)

Imminent danger means where the structural condition of the tree in part or full is so unstable that it would be unreasonable and dangerous to delay so as to go through an approval process. An example may be obvious instability of the root system, evidence of soil uplifting, cracking, loss of structural roots, storm damage and structural defects that are imminently hazardous such as cracking/splitting of the trunk and/or main branches.

Impervious area means a hard surface area such as roof areas, roads, driveways, car parking areas or pathways that prevent the entry of water into the soil causing runoff the surface in greater quantities and at an increased rate of flow.

Infill development means new buildings sited and designed to 'fit in' and respect the context within which it is located. Infill development occurs where there is an existing building which is to be demolished or where there is a vacant allotment.

Injury *(as it applies to trees or vegetation for the purpose of the DCP)* means removing a tree or vegetation; pruning, damaging, breaking or tearing of live branches and/or roots that is not carried out in accordance with AS 4373 – 2007 – Pruning of Amenity Trees); lopping (height reduction) or topping a tree; poisoning a tree or vegetation, or spilling and or damaging the root zone through directed contaminants or compaction or stripping of top soil; ringbarking, scarring or otherwise causing physical damage to the tree; underscrubbing of native vegetation, particularly carried out by mechanical tools such as brushcutters, skid steers, backhoes and the like.

Integrity *(as it applies to a building or place)* means the soundness, quality and condition of the fabric. A heritage item is said to have integrity if its assessment and statement of significance is supported by sound research and analysis, and its fabric and curtilage are still largely intact.

Intrusive development means development which is inappropriate to the significant heritage character of the heritage item or heritage conservation area due to its form, scale, bulk, materials and proportions and which adversely affects adjoining buildings, the streetscape and general character of the area.

Landscape fabrication means the creation, through any or all of the processes of construction, land reshaping, soil amendment and replanting, of a landscaped area which is distinctly different in species diversity, composition, structure and appearance to the pre-existing bushland community on a site.

Likely habitat tree means any naturally-occurring tree, living or dead, (being native vegetation or remnant native vegetation) which contains one or more visible hollows (cavities within the trunk or branches) and which is suitable for the occupation of hollow-dependent fauna such as nesting birds, arboreal marsupials such as possums, or native placental mammals such as bats for the purposes of nesting, roosting and/or denning sites, or which is supporting the growth of locally indigenous or endemic epiphytic plants such as orchids.

Listed Weed Species means those declared and environmental weed species contained within Part C2.3 of this DCP, under Weeds of the Blue Mountains.

Local provenance means the specific plant is genetically similar to other plants naturally occurring (either currently or historically) on a site.

Local provenance plants are grown from seed that is collected from healthy plants growing near the planting site in similar environmental situations. Using plants of local provenance is important because local plants are genetically adapted to local conditions. Planting local plants increases the success of revegetation projects and decreases the risk of disrupting the local flora gene pool.

Local significance means items that are of heritage significance to the local community.

Locally indigenous species means a species that occurs at a place within its historically known natural range and that forms part of the natural biodiversity of a place.

Locally indigenous means a plant which grows 'naturally' (either currently or historically) in the bushland of the local area

Maintenance *(as it applies to biodiversity)* means the continuous protective care of the biodiversity and geodiversity of a place or ongoing care (including remedial action) of an item, comprising a single tree, area of remnant bushland or of the fabricated (created) landscape, and may include weed control or supplementary watering.

Maintenance *(as it applies to heritage)*, in relation to a heritage item, Aboriginal object or Aboriginal place of heritage significance, or a building, work, archaeological site, tree or place within a heritage conservation area, means ongoing protective care, but does not include the removal or disturbance of existing fabric, alterations (such as carrying out extensions or additions) or the introduction of new materials or technology. (LEP 2015)

Modification means altering a place to suit proposed uses that are compatible with the natural significance of the place. Modification may involve changes to safeguard the natural significance of a place

Monitoring means ongoing review, evaluation and assessment to detect changes in the natural integrity or improved condition of a site, with reference to a baseline condition. Monitoring is used to assist review of decisions by providing knowledge of the effects of conservation processes, and allows the consent authority to determine if objectives of the environmental protection works are being achieved.

Moveable heritage means heritage items or parts of an item not fixed to a site or place (for example, furniture, locomotives, archives).

Native plant *(as it applies to horticultural use)* means originating anywhere in Australia, and may be a cultivated variety of a native plant (cultivar).

Natural Areas *(for the purpose of this DCP)* means those areas comprised of indigenous vegetation and habitat features, and which are conserved and protected from incompatible recreational or other uses.

Natural heritage significance means natural areas and items (as opposed to cultural items) may have natural heritage significance for their evolutionary, aesthetic, technical/ research and social values.

Operation of an onsite wastewater disposal system has the same meaning as to 'operate a system of sewage management' in accordance with Sections 68 and 68A of the Local Government Act 1993.

Outbuilding means a non-habitable building which is ancillary to a dwelling and includes detached garages, sheds, gazebos, cabanas and the like.

Overland Flow Path means the path of rain-induced surface run-off that is not part of a defined watercourse or natural flow path, including run-off in excess of the capacity of the road and property drainage system.

Parallel road means, in the case of a lot that has boundaries with parallel roads, the road that is not the primary road.

Passive Design is a design principle that responds to local climate and site conditions to maintain a comfortable temperature in the home, relying on minimal mechanical heating and cooling.

Pedestrian means all forms of mobility excluding cycling and vehicles.

Place means a site, area or landscape or group of works, together with associated structures, contents and surrounds.

Preservation *(as it applies to biodiversity)* means maintaining biodiversity of a place at the existing stage of succession, or maintaining existing geodiversity.

Preservation *(as it applies to a building or place)* means maintaining the fabric of an item in its existing state and retarding deterioration. It does not include new work.

Principal building form means the original front section of a building and its main roof, which contains the main rooms.

Private EV connection is the provision of a minimum 15A circuit and power point to enable easy future EV connection in the garage connected to the main switch board.

Probable Maximum Flood (PMF) means the largest flood that could reasonably occur.

Proportion means the relationships between the different elements of the structure and how well they 'sit' together. Different building styles are characterised by different proportions, and it is important that changes respect the proportions of the original building.

Protecting means including a heritage item on a statutory list and/or making decisions about its future that ensure its heritage significance is maintained.

Protection means taking care of a place or feature by managing impacts to ensure that its natural significance and / or function is retained. It may involve the placement of fencing or barriers to introduce a physical separation between the area or item to be protected and a disturbance (e.g. construction works).

Prune or pruning means cutting branches from a tree/s in a planned and systematic manner that is carried out in accordance with the provisions of Australian Standard AS 4373 - 2007 - Pruning of Amenity Trees.

Reconstruction means returning a place as nearly as possible to a known earlier state by the introduction of new or old materials into the fabric (not to be confused with conjectural reconstruction which is not based on a known earlier state.

Reconstruction through revegetation means the introduction of locally indigenous plant species, modelled on the diversity and structural characteristics of the original vegetation community. It is carried out by planting or by re-introducing propagules.

Recruitment (as it applies to trees or vegetation) means to spontaneous or facilitated germination of seedlings of extant plant species within a community, which may ultimately represent a younger age class cohort.

Reference ecosystem or landscape means a model for planning an ecological restoration project, and may represent the 'target condition' for environmental protection works.

Regeneration means the recovery of natural integrity following disturbance or degradation. Regeneration applies to both the geodiversity (soils, rocks, landforms) and biodiversity of a place, and includes the process of natural succession.

Relic means any deposit, object or material evidence relating to the use or settlement of the area of the Blue Mountains, not being Aboriginal habitation, which is more than 50 years old or Aboriginal habitation of the area of the Blue Mountains commencing before or continuing after its occupation by persons of European extraction, including human remains.

Remediation: means: (a) removing, dispersing, destroying, reducing, mitigating or containing the contamination of any land, or (b) eliminating or reducing any hazard arising from the contamination of any land (including by preventing the entry of persons or animals on the land).

Remnant vegetation means locally indigenous trees, shrubs and groundcovers which remain on a site following clearing of land for agriculture, development or other use.

Remove or removal means to cut down, fell, destroy, kill, take away, uproot or transplant a tree from its place of origin.

Representativeness means a value of significance; an item may have this type of significance because it is a fine representative example of an important class of significant items or environments.

Resilience means the recovery of a plant community, species or ecosystem following disturbance, as well as the potential of the plant community, species or ecosystem to recover after disturbance (McDonald 1996). A resilient community is one which is expected to persist and recover generally to its pre-disturbance identity and function or to an equivalent stable state, following disturbance. (Holling, 1973; Gunderson, 2000; Scheffer & Carpenter, 2003)

Restoration means returning the existing fabric of a place to a known earlier state by removing accretions or by reassembling existing components without introducing new material.

Rhythm means the repetition of elements such as windows, doors, gables and roof planes in the arrangement of the façade (elevation) of the building. It is also a term used to describe the patterns of spacing of buildings on the site or in the streetscape, where the repeated elements include the houses, fences and driveways.

Roofscape means a view or expanse of roofs including their pitch and form, and elements such as chimneys, parapets, party walls, guttering and roof materials.

Scale means the overall size of the building or element in comparison to the original, or of other buildings in the locality. It is based on the size of the footprint, height of the walls and the pitch of the roof relative to the size of the lot. New development is generally more sympathetic if it is of a smaller, or more modest, scale than the original.

Shared EV connection is the provision of a minimum Level 2, 40A fast charger and power supply to a car parking space connected to an EV distribution board.

Significance means the same as 'heritage significance'.

Significant building means a building that has historic, scientific, cultural, social, archaeological, natural or aesthetic value for past, present or future generations, and which is not listed as a heritage item; or a building that makes a positive contribution to the streetscape in terms of aesthetic or architectural qualities, has local or state significance, or both and/or has a rarity value.

Significant cultural plantings mean those plants including native plants that were planted for a deliberate purpose and which reflect the taste or fashion of a particular period or were associated with a person or event of historical significance.

Siting means the placement of the structure, both on its lot and within the wider landscape. It includes setbacks and the direction that the building faces, for example, whether it is sited parallel to the street (in the usual manner), sideways (to face the side boundary) or set on an angle relative to the street.

Soft Engineering is the use of ecological principles and practices to reduce erosion and achieve the stabilization and safety of disturbed land, stormwater channels and riparian areas. Soft engineering is achieved by using vegetation and other (generally) biodegradable materials to manage and stabilise the land-water interface and bare soil surfaces, particularly on steep land.

State significant means items that have been assessed and determined by the New South Wales Heritage Council to be of heritage significance to the State of New South Wales, and are fine examples, or rare, at the State community level. Listed on the State Heritage Register.

Succession means the natural process by which species composition changes over time in response to the natural development of the plant community.

Triggers means actions which may stimulate regeneration of soil stored seed or other propagules, and includes fire or other application of heat to the soil , application of 'smoked water', scarification of the soil surface, application of water during dry periods, weed control using mechanical means which creates soil disturbance.

Trunk means the main stem of the tree, as distinguished from the branches and roots.

